

TENTATIVE RULINGS for LAW and MOTION

September 10, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Grib v. Tesla, Inc.**
Case No. CV2026-0954

Hearing Date: **September 10, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Tesla, Inc.’s (“defendant”) request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiffs Lyubov Grib and Andrey Grib’s (collectively, “plaintiffs”) objections to evidence are **OVERRULED**.

Defendant’s motion to compel arbitration and stay case is **GRANTED**. (9 U.S.C. § 1, et seq.; Code Civ. Proc., § 1281 et seq.; Kim Decl.; Ameripour Decl.) “A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357; *Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284.) The Court finds that defendant has established the existence of an arbitration agreement between defendant and plaintiffs. (9 U.S.C. § 4; Code Civ. Proc., § 1281.2; Cal. Rules of Court, rule 3.1330; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219; *Banner, supra*, 62 Cal.App.4th at p. 357; Kim Decl., ¶¶ 3-14.) The Court further finds that plaintiffs have failed to demonstrate that the arbitration agreement is unconscionable. (Grib Decl.; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329 [both procedural and substantive unconscionability “must be present before a contract or contract provision is rendered unenforceable on grounds of unconscionability”]; *Carboni v. Arrospide* (1991) 2 Cal.App.4th 76, 83 [“there is a sliding scale relationship between the two concepts: the greater the degree of substantive unconscionability, the less the degree of procedural unconscionability that is required to annul the contract or clause”]; see also *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 87 [same].)

This matter is stayed pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Horizon Contract Glazing, Inc. v. Klein**
Case No. CV2026-0960

Hearing Date: **September 10, 2026** **Department Thirteen** **9:00 a.m.**

Motion to strike:

Defendant Michelle Klein’s request for judicial notice is **GRANTED**. (Evid. Code, § 452, subd. (d).)

Defendant’s motion to strike portions of plaintiff’s first amended complaint (“FAC”) is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., §§ 435, 436.) Where a complaint fails to allege facts sufficient to support a punitive damages claim, the offending allegations and prayer are properly stricken. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63-64.) Oppression, fraud, or malice, each involve “intentional,” “willful,” or “conscious” wrongdoing of a “despicable” or “injur[ious]” nature. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) The FAC does not allege that plaintiff Horizon Contract Glazing, Inc. communicated to defendant that it could not operate without the requested information or defendant was not authorized to use plaintiff’s credit cards. (Opposition, pp. 3-6; See FAC generally.) Additionally, plaintiff does not allege facts showing that defendant misrepresented her “hours worked, compensation owed, or identity...” (Opposition, p. 4; See FAC generally.) Therefore, plaintiff’s FAC fails to allege facts sufficient to support a punitive damages claim. (See *Turman, supra*, 191 Cal.App.4th at pp. 63-64.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Order to show cause:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: **McKeon v. General Production Service of California, Inc.**
Case No. CV2026-0203

Hearing Date: **September 10, 2026** **Department Thirteen** **9:00 a.m.**

As an initial matter, the Court notes that defendant General Production Service, Inc. (“defendant”) filed a supplemental declaration of Eric Estrada on August 21, 2026. The Court, in its discretion, will consider the supplemental declaration. (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].) Because the Court is considering the supplemental declaration, the Court will allow plaintiff Douglas Patrick McKeon (“plaintiff”) to file a supplemental opposition and will allow defendant to file a supplemental reply.

On the Court’s own motion, defendant’s motion to compel arbitration and stay case is **CONTINUED to October 15, 2026**, at 9:00 a.m. in Department Thirteen.

By **October 2, 2026**, plaintiff may file a supplemental opposition.

By **October 8, 2026**, defendant may file a supplemental reply.

No other documents will be considered.

TENTATIVE RULING

Case: **Rubio v. Yolo County Housing Authority**
Case No. CV2025-1886

Hearing Date: **September 10, 2026** **Department Thirteen** **9:00 a.m.**

Defendant Yolo County Housing Authority's motion to consolidate related matters is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 1048, subd. (a).) The notice of motion was not filed in each case sought to be consolidated. (Cal. Rules of Court, rule 3.350(a)(1)(C).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sierra Northern Railway v. California Department of Water
Resources
Case No. CV2022-0479**

Hearing Date: **September 10, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Stewart v. The Regents**
 Case No. CV2024-2139

Hearing Date: **September 10, 2026** **Department Thirteen** **9:00 a.m.**

Defendant James Wood, DVM's motion for summary judgment:

Defendant James Wood, DVM's request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, 453.) While the Court takes judicial notice of Exhibits B, C, and E, defendant has not shown that the Court may take judicial notice of Exhibits D and F. (See Evid. Code, § 452, subd. (d).)

Plaintiff Ashley Stewart's objections to defendants' separate statement of undisputed material facts are **OVERRULED**. (Code Civ. Proc., § 437c, subd. (f)(1); see also Cal. Rules of Court, rule 3.1350.)

Plaintiff's objection as to defendants' evidence no. 5 is **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's objections to plaintiff's evidence nos. 1 through 36 are **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's motion for summary adjudication as to plaintiff's fourth cause of action for negligence is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence." (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 602, quotation marks, brackets, and citation omitted.) While defendant challenges the breach of standard of care and causation elements, there are triable issues of material fact as to these elements, given the competing expert declarations. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523; *Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984–985; *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 970; UMF 11-12, 20, & 25.)

Defendant's motion for summary adjudication as to plaintiff's fifth cause of action for conversion is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages." (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066; see also *Enter. Leasing Corp. v. Shugart Corp.* (1991) 231 Cal.App.3d 737, 747.) Defendant has failed to satisfy its initial burden to show that cause of action has no merit. (Code Civ. Proc., § 437c, subd. (p)(2).) Specifically, defendant has not shown that his actions fell within plaintiff's authorization. (*Duke v. Superior Court* (2017) 18 Cal.App.5th 490, 506 ["If a defendant is authorized to make a specific use of a plaintiff's

property, use in excess of that authorized may subject the defendant to liability for conversion...”], citation and quotation marks omitted.)

Defendant’s motion for summary adjudication as to plaintiff’s sixth cause of action for fraudulent concealment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) “The elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248, citation and quotation marks omitted.) Defendant has failed to show that this cause of action has no merit, as alleged in the SAC, and therefore, defendant has not satisfied its initial burden. (See *Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 421 [“Generally, motions for summary judgment “are limited to the claims framed by the pleadings”]; SAC, ¶¶ 108-111.)

Defendant’s motion for summary adjudication as to plaintiff’s request for punitive damages is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) First, as to Civil Code section 3294, plaintiff alleges that defendant “texted to Plaintiff’s phone photos of Fig’s dissected heart, intestines, and body without any warning or explanation.” (SAC, ¶ 72.) Defendant fails to establish that this cannot form the basis for punitive damages. (See, e.g., Civ. Code, § 3294, subd. (c)(1).) Second, as to Civil Code section 3340, defendant does not show that a party can obtain summary adjudication on a request for exemplary damages under section 3340. (See Code Civ. Proc., § 437c, subd. (f)(1).)

Accordingly, defendant’s motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subds. (c), (p)(2).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

The Regents’ motion for summary judgment:

Defendant The Regents of the University of California’s request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, 453.) While the Court takes judicial notice of Exhibits B, C, and E, defendant has not shown that the Court may take judicial notice of Exhibits D and F. (See Evid. Code, § 452, subd. (d).)

Plaintiff Ashley Stewart’s objections to defendants’ separate statement of undisputed material facts are **OVERRULED**. (Code Civ. Proc., § 437c, subd. (f)(1); see also Cal. Rules of Court, rule 3.1350.)

Plaintiff’s objection as to defendants’ evidence no. 5 is **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's objections to plaintiff's evidence nos. 1 through 36 are **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's motion for summary adjudication as to plaintiff's second cause of action for breach of bailment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendant has failed to satisfy its initial burden to show that cause of action has no merit. (Code Civ. Proc., § 437c, subd. (p)(2); *Windeler v. Scheers Jewelers* (1970) 8 Cal.App.3d 844, 850; *Gebert v. Yank* (1985) 172 Cal.App.3d 544, 551; SAC, ¶¶ 90-93.)

Defendant's motion for summary adjudication as to plaintiff's third cause of action for negligence is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence." (*Hanson, supra*, Cal.App.4th at p. 602, quotation marks, brackets, and citation omitted.) While defendant challenges the breach of standard of care and causation elements, there are triable issues of material fact as to these elements, given the competing expert declarations. (*Kelley, supra*, 66 Cal.App.4th at p. 523; *Munro, supra*, 215 Cal.App.3d at pp. 984-985; *Lattimore, supra*, 239 Cal.App.4th at p. 970; UMF 47-48, 56, & 61.)

Accordingly, defendant's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subds. (c), (p)(2).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.